COLLECTED SHIURIM

Studies in Halacha

Rabbi Aryeh Lebowitz · 3 shiurim with notes

IN THIS VOLUME

3 shiurim

IN THIS VOLUME

Contents

3 shiurim

NO.	SHIUR	PAGE
01	Stripes on the טלית Rabbi Aryeh Lebowitz	3
02	Turkish Coffee on שבת Rabbi Aryeh Lebowitz	5
03	טבילת כלים ע״י קטן Rabbi Aryeh Lebowitz	9

SHIUR 01

Stripes on the טלית

Rabbi Aryeh Lebowitz

Stripes on a טלית

Where the stripes come from

Some people have black stripes on their טלית, some have blue, some have white, and some have Joseph's Technicolor Dreamcoat. Where does this come from? Is it a מנהג ישראל, or just something we do?

The ספרים give three possible explanations. The פרי מגדים in הלכות ציצית suggests that the stripes are a זכר לתכלת, which we did not have for many years. This helps explain why we commonly find stripes on a wool טלית קטן but not a cotton one. It is not that nobody figured out how to make black cotton. We have black cotton T-shirts! תכלת is wool, so a זכר לתכלת belongs on a wool בגד. Even someone who now wears תכלת may continue to have stripes.

A second explanation comes from the זוהר. Black represents גבורה, while white represents חסד or רחמים. The טלית brings them together, with white as its primary color and black or blue as the secondary color.

A third possibility relates to the משנה in ברכות, which gives the early זמן for קריאת שמע as the ability to distinguish בין תכלת ללבן. A colored stripe against a white בגד puts that contrast in front of us. Perhaps the stripe was included to help identify that זמן. It cannot fulfill the מצוה דאורייתא of תכלת, but it could serve this other function associated with תכלת.

Why black or blue?

Black is the most common color today. The רמב״ם in הלכות ציצית פרק ב׳ describes the דם החלזון as black, although he seems to understand that the dye becomes blue after processing. That distinction matters. The color of the original דם does not by itself establish that the finished תכלת was black.

The גמרא in מנחות says that תכלת resembles the sea and the sea resembles the sky. But at what time of day? The sky looks very different in daylight and toward evening. רש״י seems to understand the darker

evening color, while the רמב״ם understands the daytime sky. A very dark blue, almost black, could help explain black stripes.

Another possibility is the description of תורה as אש שחורה על גבי אש לבנה. The white represents purity, with the black letters upon it. Since ציצית remind us of all תרי״ג מצות, perhaps the בגד carrying them should also represent תורה.

Blue seems to have been the more common מנהג in earlier times. David Wolfson's account of designing a flag for the Zionist Congress assumes that the טלית is blue and white. We already have a flag, he reasoned: take the טלית out of the bag and put a מגן דוד on it. The point for our purposes is that his familiar טלית had blue stripes.

White stripes and a mostly white בגד

White on יום כפור symbolizes purity and the hope that our sins will become whitened. There is also a common ספרדי practice of white stripes throughout the year. The חיד״א cites the מהרש״ל concerning a white טלית, although the exact title and wording of that citation are unclear in the transcript.

We can put two ideas together. The שולחן ערוך brings the view that the ציצית should match the color of the טלית, while the רמ״א describes our practice of using white ציצית even on colored garments. If the ציצית should match the בגד and we use white ציצית, the בגד should be white. There is also a preference על פי קבלה for a fully white טלית.

The בן איש חי in פרשת נח nevertheless allows a little color along the sides for נוי. The טלית and its חוטים should be white, but a small decorative amount of another color does not disturb that when the body of the טלית is mostly white. Although white stripes are the more common ספרדי practice, there are pictures of רב כדורי, רב אבא שאול, and, in earlier years, רב עובדיה wearing black stripes. It is not the end of the world.

SHIUR 02

Turkish Coffee on שבת

Rabbi Aryeh Lebowitz

הקדמה

- **Case:** Turkish coffee is ground very finely almost like flour and mixed with water in a special כלי
  - Heated on a stovetop until it foams before boiling, then poured into cups because the liquid is thicker than regular coffee
  - What stays at the bottom of the כלי is a בוץ of mud from the ground coffee mixed with water
- **Q:** is there a way to make it on שבת by taking hot water from the urn just below boiling and doing the rest of the process as normal because turning on fire or putting anything on the stovetop is impossible
  - **A:** there are two issues to discuss, בישול and לש
    - From a בישול perspective it is not complicated to get around, but לש remains a קושיא

בישול

- **בישול:** like pour over coffee, the מציאות is that all coffee beans are roasted before grinding so they have gone through a בישול process
  - **שו"ת אזנים למדנות סימן ל"א:** roasted beans are already edible, meaning מבושל כל צרכו
    - That is the שיטה of גנת ורדים and רב יעקב עמדין במור וקציעה and כתב סופר and חתם סופר that once roasted the beans are fully cooked and fully edible
  - **פרי מגדים משבצות זהב סימן ש"כ ס"ק י"א אות א':** even though the beans are roasted they are not fully edible and therefore not מבושל כל צרכו, so further cooking is real בישול מדאורייתא
  - If we assume like the פוסקים that roasted means fully cooked, there is a בסיס to be מקל to brew by pouring hot water directly onto the beans because אין בישול אחר בישול
- **Q:** does אין בישול אחר בישול help for ground coffee when roasting is followed by brewing in water

- **שיטת רבי אלעזר ממיץ:** יש בישול אחר אפיה even though there is no בישול after cooking, because roasting and then cooking in liquid is a different type of food preparation and therefore אסור
  - That would apply to coffee beans because they are roasted and then brewed with water, which is בישול אחר צלי or בישול אחר אפיה
- **שולחן ערוך סימן שי״ח:** מקל that אין בישול אחר אפיה so there is no בישול problem, whereas רמב״ם holds יש בישול אחר אפיה and is מחמיר
- **רב יוסף:** therefore a ספרדי can take water straight from a כלי ראשון and pour it over roasted beans with no בישול problem, whereas an אשכנזי can pour only from a כלי שני
  - Pour the water from the urn into a cup and then pour that over the beans, so it is a כלי שני which does not have the כח to be מבשל anyway
- **Q:** what about coffee being קלי הבישול that cooks easily even in a כלי שלישי
  - **ערוך השלחן סימן שי״ח סעיף ה׳:** making coffee on שבת is viewed as קלי הבישול and therefore it cooks easily even in a כלי שלישי
  - **רב משה:** once in a כלי שלישי it has no ability to be מבשל anything, so a כלי שלישי solves all the problems
  - **משנה ברורה:** even if מחמיר that there is בישול in a כלי שלישי, one does not have to be מחמיר for that in a כלי שלישי
  - So לכאורה making Turkish coffee in a כלי שלישי solves all בישול problems, so assume בישול is not a problem

לש

- **Q:** why is Turkish coffee not an איסור לש when the descriptions say what is left at the bottom is mud from the mixture of ground flour-like coffee and water
  - There are two steps in the kneading process in general
    - First step is pouring liquid over small food particles, which causes some bonding immediately, like taking flour and pouring water over it even before mixing
    - Second step is the actual kneading of the ingredients
- **גמ׳ שבת in מח׳ רבי ור׳ יוסי בר׳ יהודה:** if one pours water into a bowl of flour

- **רבי:** one violates לש even without mixing because the initial introducing of water to flour is itself לש, not only the subsequent kneading
  - **Ex:** a coagulated substance like mayonnaise is an exception where only actual kneading violates לש
    - **פרי מגדים:** because when one lumps mayonnaise onto tuna or egg salad nothing happens yet until one actually mixes it, since there is no immediate bonding
- **ר׳ יוסי בר׳ יהודה:** אינו חייב עד שיגבל that one is חייב only when one actually kneads because initial combining is not לש, only manual kneading is לש

• **להלכה:** רי״ף, רמב״ם, and ראי״ש פוסקים like רבי, and ספר תרומה and סמ״ק hold like רבי

- **שולחן ערוך אורח חיים סימן שכ״א:** פסק like ר׳ יוסי בר׳ יהודה but also quotes רבי as a יש אומרים
- Either way it is a problem because even if introducing liquid into granules is not אסור מדאורייתא, it is אסור מדרבנן
  - That is why many contemporary פוסקים say a child playing in a sandbox cannot pour water onto sand

• **גמ׳ שבת דף קנ״ה: רמב״ם פרק ח׳ הלכות שבת based on** לש of water and dirt is אסור מדאורייתא as a תולדה דלש

- **שמירת שבת כהילכתה פרק י׳ סעיף ד׳:** based on that, pouring water onto sand is אסור
- **Q:** למעשה with coffee one also ends up with soaking wet granules that become very clumpy, so why is that not an איסור לש

• **רב בליך:** when one picks up coffee granules from a filter after pour over coffee they are wet but still granules that fall apart in the hands and are still granular, as opposed to sand which becomes mud

- When something becomes בוץ it becomes a דבר גוש, a גוש אחד, and is more problematic
- **Q:** is that סברא reliable when it was said offhand in the coffee room
  - **A:** he himself was not sure, and פסקי הלכה fired at a פוסק in the stairwell or teachers room are not reliable because the פוסק did not think about it and was caught off guard

• **נ״מ:** particularly with Turkish coffee the סברא is worse because it is ground into a powder much more like flour, so it really becomes a גוש אחד that can accurately be described as mud as seen in videos of how to make it

- So leave it as a קושיא why making Turkish coffee on שבת would not violate לש even if one easily avoids בישול

SHIUR 03

טבילת כלים ע״י קטן

Rabbi Aryeh Lebowitz

הקדמה

- **Case:** avreich learning הלכות טבילת כלים reached סי׳ י״ד that a קטן is not נאמן about טבילת כלים
  - One avreich recalled that around age 12 a neighbor paid him to tovel all their כלים
  - He went with his father to the כלי mikvah and his father showed him how to let go for a second to be חציצה on יוצא כל הדעות
  - He did the first few כלים with his father, then his father left and he did the rest alone
  - He is pretty sure the כלים were glass, but that could be memory playing tricks or what he wants to believe
  - Years later he realizes he was a קטן who did טבילת כלים alone, and he is 100% confident he did the טבילה correctly
  - But he is equally sure they are not allowed to believe him because a קטן has no נאמנות on this
- **Q:** to what degree does he have an obligation to let the neighbor know
  - **Q:** if he tells them, what is their obligation, do they have to do טבילת כלים again

Is טבילת כלים דאורייתא or דרבנן?

- **תוס׳ עבודה זרה**
  - טבילת כלי מדין is a חידוש
  - Quotes רבינו תם that the simple reading of the גמ׳ is that טבילת כלים is מדאורייתא
- **רש״י**
  - Derives from וטהר that there is a חיוב of טבילה, but does not say explicitly that it is דאורייתא

- In a later רש״י he writes that it is גזירת הכתוב, which also indicates it is דאורייתא

- **רמב״ן על התורה**
  - ולבי מהרהר עוד לומר שהטבילה הזו מדבריהם והקרא אסמכתא בעלמא הוא
  - וכן אונקלוס תרגם אותה בחיטוי הזיה על אפר פרה
  - Seems to say it is דרבנן and the פסוק is an אסמכתא
- **רמב״ם מאכלות אסורות י״ז:ה׳**
  - טבילה זו שמטבילין כלי הסעודה הנלקחים מן העכו״ם ואחר כך יותרו לאכילה ושתייה
  - אינה לענין טומאה וטהרה אלא מדברי סופרים
  - וכיון שכתוב וטהר אמרו חכמים הוסיף לו טהרה אחר עבירתו באש להתיר מגיעולי עכו״ם
  - Simple reading is that it is מדרבנן because he calls it מדברי סופרים and the פסוק only an אסמכתא
- **Q:** what does the רמב״ם really hold, since מדברי סופרים and אמרו חכמים do not always mean דרבנן
  - **רמב״ם הל׳ אישות א׳:ב׳** about קידושי כסף also uses the term מדברי סופרים, so it is not clear every use means מדרבנן
  - **משנה סוכה:** אמרו חכמים אין אדם יוצא ידי חובתו ביום טוב ראשון של חג בלולבו של חבירו, yet it is a דין לכם of דאורייתא
  - **ב״מ ל״ג:** שהרי אמרו שומר חנם נשבע ויוצא, yet it is from פסוקים in the תורה
  - **רמב״ם תפילה א׳:א׳:** מצות עשה להתפלל בכל יום שנאמר ועבדתם את ה׳ אלקיכם, מפי השמועה למדו שעבודה זו היא תפילה שנאמר ולעבדו בכל לבבכם, אמרו חכמים איזו היא עבודה שבלב זו תפילה, yet these are all דינים דאורייתא
- **תשובות הרשב״א ח״ג סי׳ רל״ה**
  - מדברי הרמב״ם יראה שהוא סובר שהיא דאורייתא, פשטא דשמעתא דעבודה זרה משמע
  - Sounds that way from the סוגיא, and the רמב״ם clearly holds it is דאורייתא
- **כסף משנה**
  - Quotes the תשובת הרשב״א but disagrees
  - Holds in fact that the רמב״ם holds it is דרבנן
- **ישועות יעקב**

- Compromise approach that עיקר מצות טבילה is דאורייתא but the איסור to use the כלים before טבילה is דרבנן
- Meaning the requirement to do טבילה is מדאורייתא, but the איסור to use a כלי prior to טבילה might only be דרבנן

Is a קטן נאמן on טבילת כלים?

- **שו״ע יו״ד סי׳ ק״כ סי״ד:** אין מאמינים קטן על טבילת כלים
  - **ט״ז:** this is a ראיה that we hold טבילת כלים is מדאורייתא because otherwise we would trust the קטן
    - קטנים are not נאמן on a דאורייתא but they are נאמן on a דרבנן
- **רמ״א:** permits when a קטן is טובל in front of a גדול because then you are not relying on the נאמנות of the child
  - You do not need כוונה by טבילת כלים, you just need to know that it happened
  - A child has no נאמנות but the גדול who was with the child has נאמנות
  - This is critical because it tells us that a קטן does have נאמנות on a דרבנן
- **טבילה of glass is דרבנן**
  - Many people make a mistake and say when you tovel glass you are not supposed to say a ברכה, but they are wrong
  - When you tovel glass you are supposed to say a ברכה because we make ברכות on מצות דרבנן also
    - **Ex:** you probably said a ברכה on חנוכה and on מקרא מגילה this past year
  - It is only a חיוב טבילה מדרבנן but we do say a ברכה on it
  - So for our purposes if everything was just glass, the קטן is נאמן on דרבנן

Does טבילה need כוונה, and what if a גוי does it?

- **רשב״א and רמב״ן:** טבילת כלים does not need כוונה
  - A כלי even if it falls into the מקוה is a valid טבילה
- **שו״ע סעי׳ ט״ו:** paskens like the רמב״ן and רשב״א that if a גוי טובל your כלים the טבילה is valid because it is no worse than the כלים falling into the מקוה on their own

- But you have to know that it happened

• **רמ״א:** the גוי is not believed to say that he is the one that טובל the dishes, and the טבילה will only be valid if there was a Jew watching the גוי

- Standard practice with catering is that they have a משגיח go to the כלי mikvah or ocean with crates of כלים and non-Jewish workers help tovel them

• **Downside of a גוי doing טבילה:** you lose out on the ברכה

- **ט״ז ס״ק י״ז:** it is not a good idea to let a קטן or a גוי do the טבילה even if you are standing there because you will not be able to say the ברכה
- What they suggest is you say the ברכה, put one dish in the מקוה, and then even לכתחילה the גוי can tovel the rest of the כלים you brought
- That is what a lot of restaurants and caterers do when they have to tovel dishes
- Bottom line is that you do not need כוונה for טבילת כלים

• **מגן אברהם:** if a woman forgets to light שבת candles and she was already מקבל שבת so she cannot light anymore but it is בין השמשות, she can have a גויה light the candles and she can say the ברכה

- **Q:** why can she say the ברכה when she is not the one lighting, which should reflect on this הלכה of whether you can have a גוי do it and you say the ברכה
  - **טבילה by ט״ז:** you cannot, you have to put one of the כלים into the מקוה yourself, you have to do the מעשה
  - **שו״ע הרב:** it is different than טבילה where the גדר המצוה is a מעשה טבילה
    - הדלקת נרות is about בית שלום, which means the ongoing עונג שבת generated by having a lit environment on שבת
    - Or as the הר צבי formulates it, like what we learned about מילָה, the מצוה is not necessarily to do the מעשה but to arrange that it happens
    - The מצוה of lighting שבת candles is to make sure the שבת candles get lit, and therefore the woman is able to say the ברכה

What about testimony as a גדול on what he did בקטנותו, and חזקת איסור?

• **גר״א:** gives rules for נאמנות by saying that טבילת כלים is דאורייתא and that is why a קטן is not believed on anything that is אינו בידו even if it is only a דרבנן, ובמה שבידו נאמן בדרבנן

• Rule is that anything the קטן is able to do, he is believed on a דרבנן

• So going back to our שאלה, if it in fact was glass and it was בידו of the קטן to do it, the קטן would have נאמנות

• **Q:** maybe it was not glass and his mind is playing tricks on him

• **פתחי תשובה (ס״ק י״ד):** discusses trusting a קטן for glass כלים and says it is בחזקת איסור so maybe we cannot trust him

• The קטן is believed on that which is בידו בדרבנן but maybe not on something that has a חזקת איסור

• The כלים had a חזקת איסור prior to the טבילה, and therefore even though most פוסקים argue and do hold you could trust a קטן on glass based on the ט״ז, the פתחי תשובה thinks maybe you cannot

• **פתחי תשובה:** even goes so far as to say that if someone is just barely בר מצוה maybe you cannot even trust him on metal כלים, but we will not go that far

• **Q:** here we are not trusting a קטן, the guy is now an אברך in כולל in his mid-20s, 10 or 15 years later, so we are trusting a גדול about that which happened בקטנותו

• **משנה at end of second פרק כתובות and גמ׳ there:** someone who knows עדות about something he saw when he was a קטן and is מעיד when he is a גדול, the משנה says by a דין דאורייתא it is אינו כלום, but by something שעיקרו מדרבנן he is believed

• Again this cuts the same line, that if it were metal כלים which is לכאורה a דין דאורייתא, he would not be believed even בגדלותו על מה שעשה בקטנותו

• If it were glass כלים he would be believed, but you would not even need belief בגדלותו because you believed him even בקטנותו

• לכאורה even according to the פתחי תשובה you would believe him about glass כלים because he is מעיד בגדלותו

• These הלכות of a גדול on what he saw בקטנותו are in חו״מ סי׳ ל״ה סעי׳ ד׳ and סעי׳ ו׳ where it talks about who is כשר לעדות

- **מוסכם:** glass כלים is מדרבנן, so on glass כלים for sure he is going to be נאמן for all the reasons said
  - **ערוך השלחן:** says בפירוש that כלי זכוכית you are נאמן even בקטנות because it is only מדרבנן
    - He goes back and forth on the חזקת איסור point but seems to side with the ט״ז against the פתחי תשובה
  - On כלי מתכות, metal כלים, it is harder to be מקיל because according to רוב ראשונים טבילת כלים is דאורייתא, not like the רמב״ם as understood by some ראשונים

Are there צדדי הקולא for metal, and is it a דבר שיש לו מתירין?

- **ספק whether all the כלים were glass:** since there is a ספק, even if some were metal there could be another צד for metal כלים
  - First, maybe none of the כלים were metal
  - Second, even if there were metal כלים, the צד would be as follows
- **Only five or six types of metal are listed in the תורה:** anything not among those מיני מתכות in the תורה, like aluminum which is what most of our metal כלים are made of, or any other composite that is not one of the metals in the תורה
  - **אג״מ:** it is only מדרבנן
  - This is a discussion about טומאה as well, that the הלכה of טומאת כלים may only apply to the metals mentioned in the תורה
    - **Ex:** רב משה has it by an airplane made of aluminum that it could be it does not have a דין of metal because it is one of the newer kinds of metal
  - So there is מקום to argue that it is פטור from טבילת כלים, or at the very least that it is only מדרבנן
    - **Q:** what would be the argument that it is פטור, since even glass is חייב מדרבנן
    - **A:** they never made the תקנה, they never included it, even though the רבנן would have required טבילה if they had aluminum, but they never did because they did not have the chance
  - One could argue it is פטור from טבילת כלים, but at most says רב משה it would be דרבנן
    - One could argue no, anything with all the properties of metal would be חייב on a דאורייתא level, but at least it is a צד להקל

• **Rav Schachter:** in general does not make a ברכה on טבילת כלים ever because any כלי not owned by an individual גוי but owned by a corporation, which is an entity and not an individual non-Jew, could be it does not require טבילת כלים to begin with

  • So he will do טבילת כלים even on disposable aluminum pans, but he will not say a ברכה on the טבילה because of that possibility

• **Q:** the whole thing is a ספק, but it is a דבר שיש לו מתירין, so we cannot rely on ספק דרבנן לקולא on a דבר שיש לו מתירין, since there is a way to make it okay by טובל the כלים again

  • **שו״ע assumes:** הגעלת כלים is not a דבר שיש לו מתירין when it comes to כשרing כלים, because it is so hard to do with so much טרחה and effort, and therefore it is not considered a דבר שיש לו מתירין even though there is a way to make it מותר

  • Later פוסקים say yes, because you used to have to schlep water from the well and chop down a tree to get wood and light a fire and heat the water, so that is why they assumed הגעלה was the hardest thing

  • But nowadays you take water from your sink and put it in a pot, and many people have a faucet over the stove so you do not even have to schlep water from the sink to the stove, you just fill the pot and turn on the fire, so it is so easy

  • So one could argue טבילת כלים is a דבר שיש לו מתירין because it is so easy, what is the big deal, you just go and טובל all the כלים

  • **A:** when it comes to remembering 15 years later which כלי it was and was not, and now going to tovel all the כלים in your house because some of them maybe needed it, לכאורה that makes a big enough טרחה that it would not be a דבר שיש לו מתירין, and therefore there would be room to rely on ספק דרבנן לקולא

• **Brother's answer:** asked my brother what he thought and he made many of these arguments, then wrote ונראה שאחר כמה שנים שנתערבו כלים אלו בכל כליהם

  • That after so many years all these כלים got mixed in with all their other כלים

  • ודאי לא שייך לומר דהוי דבר שיש לו מתירין וצריך להחמיר מספק, זה אינו, שזה טרחה גדולה לחזור להטבילם, ומשום הכי לא הוי דבר שיש לו מתירין

  • It is not a דבר שיש לו מתירין and therefore we have what to be מקיל

  • Even if it is ודאי that you were not טובל them, if you cannot identify which is which and it is בטל ברוב, they are not going to require טבילה anyway

Summary

• With all those factors put together, I did not think he has any responsibility to go back and tell the people that their כלים need a further טבילה

• On glass כלים he is נאמן, whether בקטנותו acc to ט״ז and ערוך השלחן or at least בגדלותו even acc to פתחי תשובה

• On metal there is a ספק if any כלים were metal, plus צדדים that aluminum or corporate-owned כלים are only מדרבנן or פטור

• And after years of תערובת it is טרחה גדולה and בטל ברוב, so it is not a דבר שיש לו מתירין and we can rely on ספק דרבנן לקולא